



Debaser Conflict of Interest Policy

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Effective Date: 2025-03-31

Date Last Reviewed: 2025-03-31

Scheduled Review Date: 2028-03-31

Approved by: Debaser Board of Directors

For questions or feedback:

Email: hello@debaser.ca. **Online:** Policy feedback form



Preamble

This *Conflict of Interest Policy* (the “Policy”) for Debaser is designed to protect Debaser’s interests, and reflect and extend its mandate and vision, when it is contemplating entering into or continuing a transaction or arrangement that might benefit the private interest of a Debaser Board Director, Officer, or a Committee member (together, referred to as as “Members” throughout this document.).

Members shall not engage in any transaction or arrangement with Debaser that involves an actual or perceived conflict of interest, except in compliance with the Policy.

The Policy is intended to supplement, but not replace, any applicable provincial or federal laws governing conflicts of interests applicable to Debaser.

The question of conflict of interest cannot be perfectly resolved by a list of do's and don'ts. Conflict of interest goes beyond meeting minimum legal requirements and must include ethical considerations. The identification of a situation where a conflict of interest may exist will depend on how the person involved perceives the situation, and how their actions appear to others. Simply stated it is a matter of conscience, service to Debaser's community, including artists and the public, and common sense.

When viewed in this context, Members must be seen to be making decisions which are free from personal bias. At the same time, it is considered desirable to have Members who are interested and involved in the Ottawa-region and broad Canadian music ecosystems. It is important to balance this appreciation and direct involvement in these music ecosystems with the need of Members to be conscious of their visible roles with the general public, and the music and arts communities.

To assist the Members in performing the duties required of them by Debaser or provincial and federal law with respect to their oversight responsibilities and fiduciary obligations to Debaser and to the public, the Debaser Board of Directors adopts the following Policy by resolution:

Purpose

All Members have a duty to ensure that the integrity of the decision-making processes of the

Debaser Board and Committees are maintained by ensuring that they and other Members are free from conflict or potential conflict in their decision-making. It is important that all Members—including Directors, Officers and Committee members—understand their obligations when a conflict of interest or potential conflict of interest arises, and act with integrity to navigate any conflicts. It is, for example, inherent in a Member’s fiduciary duty that conflicts of interest be avoided.

Scope

This Policy applies to all Debaser Board Directors and Officers, and all non-Board Committee Members (together, referred to as “Members”).

“Directors” means those individuals elected to the Debaser Board through the official Director election process, as defined in the Debaser By-Laws.

“Officers” means Officers appointed by the Board including the Chair, a Vice-Chair, Secretary, Treasurer, and others who perform functions for the organisation similar to those normally performed by such Officers.

“Committee Members” means those individuals who take part in formal and ad-hoc committees convened by the Debaser Board of Directors or staff, and who play a part in directly supporting Debaser operations.

Debaser’s policies are living, interconnected documents. Together, they define our values, principles, and commitments, and they compose the fabric of our organisation. Debaser’s policies include the following:

- a. Mission, Vision, and Values **[link when ready]**



- b. Diversity, Equity, and Inclusion Policy [\[link when ready\]](#)
- c. Safer Spaces - Survivor Centric Policy [\[link when ready\]](#)
- d. HR - Reducing Recruitment Bias Policy [\[link when ready\]](#)
- e. Partnership Engagement Policy [\[link when ready\]](#)
- f. Accessibility Policy [\[link when ready\]](#)

Policy Inspiration

We would like to thank the Canada Council, Ontario Arts Council, National Ballet of Canada, National Gallery of Canada, SK Arts, and Imagine Canada, from whose conflict of interest policies and resources we took inspiration (and in a few cases, borrowed language directly).

Amendment & Review

This Policy may be amended with the approval of the Debaser Board of Directors.

In order to ensure its ongoing effectiveness, this Policy should be periodically reviewed by the Debaser Board. The schedule for periodic/upcoming review shall be decided by the Board at the time of the latest review and approval for the Policy.

Contact Information and Feedback Process

Feedback regarding conflict of interest is welcome and appreciated. Feedback may be provided in the following ways:

- By email: hello@debaser.ca
- Using our policy feedback form (option to submit anonymously)

A Debaser staff member will provide an email response to feedback within five business days. Feedback without contact info will not receive a response.

Debaser is committed to ensuring our feedback process is accessible. You can request accessible formats and communication support by contacting hello@debaser.ca.

The administration and application of this policy is the responsibility of Debaser's Board of Directors. For any conflict of interest queries, including questions or feedback regarding this policy, contact hello@debaser.ca.

Conflict of Interest Policy

Members shall avoid situations in which they may be in a position of conflict of interest or perceived conflict of interest. The process set out in this policy shall be followed when a conflict or potential conflict arises, alongside all responsibilities and fiduciary duties related to conflict of interest required by provincial and federal law.



Description of Conflict of Interest

A conflict of interest occurs when a Member's responsibility to act in the best interest of Debaser and follow duties (for Board Directors and Officers) is affected or hindered by another interest, relationship, or obligation of the Member.

A conflict of interest also occurs when a Member's responsibilities to Debaser are in conflict with other obligations the Member has, preventing them from fully meeting their duties to Debaser.

The situations in which potential conflict of interest may arise cannot be exhaustively set out.

Conflicts generally arise in the following situations:

A. Transacting with the Organization When a Member transacts with Debaser directly or indirectly (a transaction may include a financial transaction, trade, quid pro quo, favour, or other form of exchange). When a Member has a material, direct or indirect, interest in a transaction or contract with Debaser. For example, when a member is under consideration to be booked as an artist or hired to provide a service for Debaser.

B. Interest of a Relative When Debaser conducts business or transacts with suppliers of goods or services, or any other party of which a relative or individual in a Member's household is a principal, officer, or representative. For example, when a Member's spouse is under consideration to be booked as an artist, or when a Member's child is applying for employment at Debaser.

C. Gifts When a Member, relative, or individual in their household receives gifts, payments, services, or anything else of significant value from a person or organisation that does business with Debaser. This applies if the gift or benefit is intended to, or could be seen as trying to, influence a decision or action of the Board. For example, if a local artist presented a Member with a gift, while also indicating that they have applied to perform at a Debaser event.

D. Appropriation of Organization Opportunity When a Member diverts to the Member's own use, an opportunity or advantage that

belongs to Debaser. For example, if a Member is in charge of booking an artist for a Debaser event, there would be a conflict of interest if, instead of booking the artist for Debaser, the Member books them for a separate event they are organising for their own business.

E. Duty to Disclose Information of Value to the Organization When a Member fails to disclose information that, if withheld, would cause financial, legal or reputational harm, or otherwise fail to promote the best interests of Debaser?

F. Serving on the Board of Other Organizations / Employment with Other Organisations A Member may be in several situations of conflict of interest. This may arise where the Member serves as a Member of two organisations that are competing or transacting with one another (i.e. serving for both Debaser and another competing organisation). It may also arise where a Member has an association or relationship with another entity.



Perceived Conflicts

There may be cases where the perception of a conflict of interest may be harmful to Debaser, even where no formal conflict exists or has occurred. While these situations are difficult to exhaustively enumerate, this policy requires all Members to evaluate their actions and activities relative to their potential for perceived harm to Debaser. In such circumstances where they believe there to be a potential for the perception that their actions create a conflict of interest, the process set out in this policy for addressing conflicts shall be followed.

Disclosure of Conflicts

A Member who is in a position of conflict, potential conflict, or perceived conflict shall immediately disclose such conflict to the Board by notification to the Chair or Vice-Chair of the Board. Where the Chair has a conflict, notice shall be given to the Vice-Chair. If the Vice-Chair has a conflict, then notice shall be given to another member of the Board who is without a conflict. The disclosure shall be sufficient to disclose the nature and extent of the interest. Disclosure shall be made at the earliest possible time and, where possible, prior to any discussion and vote on the matter.

Where (i) a Member is not present at a meeting where a matter in which the Member has a conflict is first discussed and/or voted upon, or (ii) a conflict arises for a Member after a matter has been discussed but not yet voted upon by the Board, or (iii) a Member becomes conflicted after a matter has been approved, the Member shall make the declaration of the conflict to the Chair or Vice-chair as soon as possible, and at the next meeting of the Board.

If a Member becomes interested in a contract or transaction after it is made or entered into, the disclosure shall be made as soon as possible after the Member becomes so interested.

A Member may also proactively make a general declaration of the Member's relationships and interests in entities or persons that may give rise to conflicts, allowing for the identification of potential Member conflicts prior to Debaser initiating any relationships, activities or contracts with entities or persons that may give rise to conflict.

Abstain from Discussions

The Member who has declared a conflict shall not be present during the discussion or vote in respect of the matter in which the Member has a conflict and shall not attempt in any way to influence the voting.

Process for Resolution of Conflicts of Interest

All Members shall comply with the requirements of the Debaser bylaws and applicable provincial and federal law.

A Member may be referred to the process outlined below in any of the following circumstances:

A. Circumstances for Referral Where any Member believes that they or another Member:

- I. Is in a situation of actual, potential, or perceived conflict of interest; or
- II. Has behaved or is likely to behave in a manner that is not consistent with the highest standards of trust and integrity and such behaviour may have an adverse impact on Debaser.



B. Process for Resolution The matter shall be referred to the following process:

- A. COI is declared to the Board Chair through a simplified reporting template (see *APPENDIX B: Debaser Conflict of Interest Reporting Form*), or where the issue may involve the Chair, to the Vice-Chair.
- B. The Board Chair (or Vice-Chair, as the case may be) shares the report with the rest of the Board of Directors, not including the person declaring the potential conflict of interest, and provides one week (seven days) for the Board to review.
- C. As part of this review, any Member of the Board of Directors may request a formal meeting of the Board to consider the potential conflict of interest in question, or bring their concerns over the conflict in question to the Board via e-mail. Whether a potential conflict of interest warrants discussion at the Board level should be judged based on the complexity of the matter at hand with respect to balancing harms to Debaser against reasons and mitigating factors for the conflict, and whether there is past precedent for the Board making decisions on similar cases.
- D. If one or more Board Members request a formal meeting or initiate discussion over the conflict via e-mail, then a full Board discussion will take place - either via special meeting (scheduled as soon as possible) or through email communications - to consider the issue as soon as possible. It may also be discussed at the next monthly Board meeting. A decision on whether to take action with respect to the conflict of interest in question will be made at that meeting or via email, with a majority vote of the Board required for any action decided.
- E. If no Board member requests a formal meeting or raises concerns during the review period, the Chair (or Vice-Chair, as the case may be) will make a unilateral decision on any action to be taken in response to the potential conflict of interest in question.
- F. In cases where the Chair (or Vice-Chair, as the case may be) make a unilateral decision with respect to a conflict of interest (as per the process above), the matter(s) in question must be reported in full at the next Board meeting following the resolution of the matter. This provision enables the full Board to be aware of all Conflict of Interest related undertakings, and to properly exercise their fiduciary duties as Directors.
- G. A report on the Conflict of Interest in question, the process for handling it, and reasoning for any action taken in response is prepared by the Chair (with support from Debaser staff, if requested) and kept on file in Debaser's official records.
- H. It is recognized that if a conflict, or other matter referred cannot be resolved to the satisfaction of the Board (by simple majority resolution), a Member may be asked to resign or may be subject to removal pursuant to the Debaser bylaws and applicable legislation.

C. Considerations and Remedies The purpose of this conflict of interest policy is to protect the interests of Debaser while supporting its mandate and vision, rather than to be punitive. When addressing and adjudicating a conflict of interest, the Board will seek solutions that address the conflict while minimizing negative impacts on the member involved. All remedies will be designed to safeguard Debaser's integrity and operational effectiveness, minimize any real or reputational harm, and support the organisation's mandate and vision. Additionally, remedies must consider fairness and proportionality in relation to the Member's role, as well as the possibility that Debaser's broader organisational goals may supersede the conflict in question.

As an example, a Member performing at a Debaser event represents a potential conflict of interest. However, adjudicating this conflict involves weighing this risk of harm to Debaser against the potential benefits of allowing Members to perform at Debaser events (while forfeiting any financial compensation for their performance). These potential benefits reflect the values elaborated in the Preamble to this policy, which highlights the desirability of having Members who are interested and involved in the Ottawa-region and



broad Canadian music ecosystems. Fully disallowing any Members from performing at Debaser events might disincentive strong candidates from applying to join or sitting on the Debaser Board. Of course, this represents a non-specific example to demonstrate a potential way to balance harms and benefits. All conflicts should be judged individually based on their unique facts.

Possible outcomes of the conflict resolution process may include, but are not limited to:

- Permitting the situation to proceed despite the potential conflict;
- Requiring the member to modify their actions to avoid the conflict;
- Requesting the Member's resignation from the Board of Directors or other positions as necessary to resolve the conflict.

C. Appeal Within fifteen (15) days of receiving notice of the determination that an interest poses an actual, potential, or perceived conflict, and a ruling on how to address that conflict, a Member may appeal the determination by submitting a written request for review to the Board. The Board shall have sole discretion as to whether and how to review any such determination, and all decisions of the Board shall be final and not subject to further appeal.

Records

The records of any Board or Committee meeting or other correspondence in which a conflict of interest is discussed shall contain all of the following:

- the name of the Member who disclosed a potential conflict of interest or was otherwise found to have a conflict of interest;
- the nature of the conflict of interest;
- if necessary, any action taken to determine whether a conflict of interest was present;
- the decision as to whether a conflict of interest existed; and a decision on whether the transaction or matter in question shall be approved or proceed notwithstanding the conflict;
- the names of the persons who were present for, or otherwise participated in, discussions and votes relating to the transaction or arrangement, and a record of any votes taken in connection with the proceedings.

All records related to conflict of interest shall be archived as part of Debaser's official records.

Member Assent

Each Member shall, upon joining the Debaser Board or a Debaser Committee, sign a statement which affirms such person (a) has received a copy of the Policy, (b) has read and understands the Policy, and (c) agrees to comply with the Policy (see: APPENDIX B: Debaser Conflict of Interest Acknowledgement Letter).

APPENDIX A: Debaser Conflict of Interest Reporting Form

INSTRUCTIONS: As per the Debaser Conflict of Interest Policy, all Debaser Board Directors, Officers, or Committee Members are required to disclose any actual or potential conflicts of interest as part of their commitment to ethical conduct and transparency. This includes personal, professional, or financial interests that may influence your decision-making or actions on behalf of the organisation.



If you have a conflict of interest to report, please fill out this form. All submissions will be handled according to the *Process for Resolution of Conflicts* defined in the Debaser Conflict of Interest Policy.

Please fill out this form accurately and completely.

Name:

Position/Role (Board, Committee, Staff):

Date:

Email / Contact information:

Please describe any actual or potential conflicts of interest you may have, including personal, financial, or professional relationships that could influence your role within the organization:

By submitting this form, I confirm that the information provided above is accurate to the best of my knowledge. I will promptly notify the organization of any changes to this disclosure.

APPENDIX B: Debaser Conflict of Interest Acknowledgement Letter

Debaser

2 Daly Ave, Ottawa ON K1N 6E2

[INSERT DATE]

[INSERT MEMBERS' NAME]

[INSERT MEMBERS' ADDRESS]

I am writing to confirm that I, [INSERT MEMBERS' NAME], have received and reviewed a copy of Debaser's Conflict of Interest Policy. I acknowledge that I have thoroughly read and understand the provisions outlined within the policy.

As a member of the Debaser [INSERT: BOARD OF DIRECTORS or COMMITTEE NAME], I recognize the importance of adhering to ethical standards and avoiding conflicts of interest that may arise in the course of my involvement with Debaser. I affirm my commitment to complying with the Debaser Conflict of Interest Policy and to conduct myself in a manner consistent with the best interests of the organisation.

Should any situation arise where an actual, potential, or perceived conflict of interest exists, I will promptly disclose such conflicts in accordance with the procedures outlined in the policy, and abide by the procedures within towards resolving the conflict.

Please consider this letter as my formal acknowledgment of receipt, understanding, and agreement to comply with Debaser's Conflict of Interest Policy.

Sincerely,

[ADD SIGNATURE]

[INSERT MEMBERS' NAME]

[INSERT MEMBERS' TITLE]

Enclosure: Debaser Conflict of Interest Policy